

Created Date 6/17/2026
Quote Number 00007445
Expiration Date 8/18/2026

Account Name NY Allergy and Sinus Centers
Contact Name Morris Najet
Phone 3322722007

Billing Address 225 East 57th Street
New York, New York 10022
United States

Shipping Address United States

Prepared By Erik Bernard

Email erik.bernard@pulm-one.com

Product	Quantity	Sales Price	Total Price
MiniBox+™	1.00	USD 35,675.00	USD 35,675.00
MiniBox+ Cart	1.00	USD 2,680.00	USD 2,680.00
4-Year Extended Warranty	1.00	USD 9,915.00	USD 9,915.00
DLCO Gas Regulators	1.00	USD 450.00	USD 450.00
100 Tests+Filters+Clips	1.00	USD 320.00	USD 320.00

Payment Method Checks
Payment Terms Cash

Total Price USD 49,040.00
Deal Discount USD 11,240.00
Deal Total USD 37,800.00
Grand Total USD 37,800.00

PulmOne Signature: _____

Customer Signature: _____
Date: _____

TERMS & CONDITIONS

1. Acceptance of Terms: PulmOne USA Inc. ("PulmOne") agrees to sell to the person ("Customer") named in the purchase order (the "Order") those products and/or services referenced in the Order ("Products" and "Services" respectively), on and subject to these terms and conditions. No Order shall be binding on PulmOne until accepted by PulmOne in writing.
2. Price and Taxes: Prices in the Order do not include applicable value added, excise, sales, use, transfer, or other similar taxes which shall be borne solely by Customer.
3. Payment Terms; Default: All amounts must be paid within the period referenced in the Order. Customer will pay default interest on all outstanding amounts due under any Order at a rate of 2.0% per month, compounded simply ("Default Interest"). Should any amount owing and payable by Customer in respect of a Product be delayed by 30 days or more, then PulmOne shall be entitled, by notice to Customer, to terminate the Order, in which case, the following shall apply: (i) Customer must return the Product to PulmOne, at Customer's sole expense and risk, in the condition in which it was first delivered to Customer, together with all related packaging; (ii) to the extent PulmOne determines, in its sole discretion, that the Product is no longer in the condition in which it was originally delivered to Customer, then PulmOne shall be entitled to impose a fee on Customer, which Customer must pay on demand, up to the price of the Product; (iii) Customer will be required to pay to PulmOne, on demand, all costs and expenses (including reasonable attorney fees) in enforcing PulmOne's rights hereunder, plus a handling fee in the amount of \$1,500 (plus applicable taxes); (iv) Default Interest will continue to accumulate until Customer's obligations under this provisions have been fully complied with; and (v) Customer shall not be entitled to a refund of any amounts previously paid by Customer in respect of the Product.
4. Title and Risk of Loss: Title to the Products shall pass to Customer after and subject to full payment for the Products is received by PulmOne, however risk of loss shall pass to the Customer immediately upon delivery of the Products.
5. Acceptance and Inspection: All Products delivered must be examined by the Customer promptly upon receipt. Customer shall notify PulmOne in writing within ten (10) days after such receipt of any discrepancies between Products received and those ordered by Customer and any apparent defects or damage to the Products (inspection claims). PulmOne shall not be obligated to consider inspection claims made after such 10 day period. If an Order includes initial demonstration of Product functionality by PulmOne, Customer shall be deemed to accept the Products when functional testing by PulmOne demonstrates that a Product conforms to the specifications in such Product's operator manual.
6. Limited Warranty: All Products are warranted to be free of material defects in materials and workmanship for a period of 12 months beginning from the date Customer received the delivery of the Products (the "Warranty Period"). Customer's sole remedy in respect of a defective Product shall be to return the defective Product to PulmOne and receive a replacement Product (fixed or new) in return, or a credit in respect of the defective Product, at PulmOne's sole discretion. The cost of shipment of defective Products to PulmOne shall be for the account of Customer, and the cost of return of the replacement Product shall be for the account of PulmOne. Without derogating from the foregoing, it is hereby clarified that this limited warranty does not extend to: (i) nonconformities, defects or errors in the Products due to accident, abuse, misuse or negligent use of the Products or use in other than a normal and customary manner and in normal and customary environmental conditions, or failure to follow prescribed operating maintenance procedures, (ii) defects, errors or nonconformities in the Products due to modifications, alterations, additions or Product changes not made or authorized to be made by PulmOne, (iii) normal wear and tear, or (iv) damage caused by force of nature or act of Customer or any third party. The Warranty Period may be extended by the Customer by payment of an additional fee to PulmOne for such extended period, in an amount set by PulmOne from time to time.
CUSTOMER'S REMEDY FOR BREACH OF WARRANTY AS EXPRESSLY PROVIDED ABOVE CONSTITUTES PULMONE'S SOLE AND EXCLUSIVE OBLIGATION AND WARRANTY AND CUSTOMER'S SOLE AND EXCLUSIVE REMEDY FOR DEFECTIVE PRODUCTS. THE FOREGOING WARRANTIES ARE IN LIEU OF ALL OTHER WARRANTIES, EXPRESSED OR IMPLIED, AND OF ALL OTHER OBLIGATIONS OR LIABILITIES, CONTRACTUAL OR OTHERWISE, EITHER TO THE CUSTOMER OR TO ANY OTHER PERSON, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, WHICH ARE HEREBY EXPRESSLY DISCLAIMED AND WAIVED.
7. Intellectual Property Rights. All intellectual property and other rights with respect to the Products, including, but not limited to, all patents, trademarks, copyrights, service marks, trade names, technology, know how, moral rights and trade secrets, all applications for any of the foregoing, and all permits, grants and licenses or other rights relating to the Products, both registered and unregistered, owned and/or otherwise used by PulmOne and all goodwill related thereto (hereinafter, referred to as the "IP Rights") are and shall remain at all times the sole and exclusive property of PulmOne. Customer will not have or acquire any right, title or interest in or otherwise become entitled to any IP Rights by taking delivery of, making payment for or otherwise using the Products. Customer must not reverse-engineer the Products or attempt to do so, or allow any person or entity to do so.
8. Services and Support: PulmOne provides standard maintenance service, repairs and support for the Product during the Warranty Period at no additional charge to the Customer. These Services include telephone technical support, hardware repairs, and software bug fixes. After the Warranty Period, such maintenance, repair, and support services may be provided by PulmOne at its standard service rates. PulmOne shall perform the maintenance and support services in a reasonable timely, professional, and workmanlike manner using trained and qualified personnel capable of performing such services in accordance with standards used in the industry.
9. Limitations of liability: The total cumulative liability of PulmOne arising out of or in connection with any Product Ordered by Customer shall be limited to the purchase price paid by Customer for such Product. In no event shall PulmOne be liable for indirect, incidental, special, consequential, or punitive damages, of any nature or kind whatsoever and under any theory of law (whether in contract, tort, or otherwise), including but not limited to loss of anticipated profits, loss of revenue, loss of production, loss of business opportunity, downtime, loss of use of

equipment or any installation, system or facility into which PulmOne's Products may be located, even if advised of the possibility of such damages in advance, and Customer will hold PulmOne harmless from and against any and all such liability in excess of this amount. PulmOne shall not be liable for any latent defects or any other defects that might appear after the lapse of the Warranty Period. Customer's sole and exclusive remedies for any damages or loss in any way connected with the provision of Services, shall be at PulmOne's option; (i) re-performance of the relevant Services; or (ii) return of an appropriate portion of any payment made by Customer with respect to the applicable portion of the Services.

10. Governing Law. The Order and these terms and conditions Order shall be governed by and construed in accordance with the laws of the State of New-York. The parties agree to submit any dispute connected with or arising under any Order to the exclusive jurisdiction of the competent courts in New York city, NY.